

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
COMMERCIAL DIVISION · BENCH IV
Commercial Suit No. 1187 of 2024 · Notice of Motion No. 441 of 2024

Julian Martinez	... Plaintiff / Charterer
v.	
Coastal Holdings Ltd.	... Defendant / Vessel Owner

CORAM: THE HON'BLE MR. JUSTICE K. R. MERCHANT
DATE: 02-SEPTEMBER-2026

INTERIM AD-INTERIM INJUNCTION ORDER (Under Section 9, Arbitration & Conciliation Act, 1996)

1. Heard learned Counsel Adv. Elena Vance for the Plaintiff and learned Counsel for the Defendant.
2. The present application seeks urgent interlocutory protection regarding 14,000 MT of industrial catalysts cargo currently situated aboard the vessel 'MV Coastal Trader' docked at Berth 9, Commercial Port Terminal.
3. The Defendant has issued an ultimatum threatening to exercise a maritime possessory lien and auction the cargo to satisfy an alleged demurrage claim of USD 184,000.
4. The Plaintiff establishes prima facie that the charterparty agreement contains an arbitration clause and that invocation of maritime lien is governed by Clause 24 and demurrage accrual is governed by Clause 19(b).
5. The balance of convenience lies decidedly in favor of the plaintiff, considering the perishable nature and volatile chemical shelf-life of the industrial catalysts. Irreparable injury would be caused to the Plaintiff if the cargo is detained or alienated.

OPERATIVE DIRECTIONS & SCHEDULING:

6. There shall be an ad-interim status quo order restraining the Defendant Coastal Holdings Ltd., its agents, servants, and representatives from asserting a maritime cargo lien, detaining, selling, transferring, or creating third-party rights in respect of the 14,000 MT of industrial catalysts at Berth 9, pending final hearing of this motion.
7. The Plaintiff Julian Martinez is directed to maintain the security deposit of Rs. 25,00,000 previously deposited with the Court Prothonotary & Senior Master until further orders.
8. Defendant shall file its reply affidavit within 7 days. Rejoinder, if any, within 4 days thereafter.
9. Verified notification from the Maritime Port Terminal Authority regarding stevedore labor disruption must be submitted to the Bench registry prior to next listing.
10. Notice returnable and matter listed for final hearing before Commercial Bench IV on:
DATE & TIME: 17-SEPTEMBER-2026 AT 10:30 AM.

By Order of the Court,

[Sd/- Registrar, High Court Commercial Division]